# TERMS OF USE

**A2A GLOBAL INC — MARKETPLACE AND SOFTWARE PLATFORM**

**Effective Date: April 6, 2026**

**Entity: A2A Global Inc, a Delaware Corporation (File No. 10050200)**

***REGULATORY AND NON-CUSTODY NOTICE:*** *A2A Global Inc ("A2A Global") is a marketplace and software platform operator. A2A Global does not resell financial services and does not engage in money transmission as defined under the Bank Secrecy Act (31 U.S.C. §§ 5311–5332), FinCEN regulations (31 CFR § 1010.100(ff)(5)), or any applicable state money transmission laws. A2A Global's acceptance and coordination of funds is conducted exclusively through duly Licensed Service Providers and is integral to the marketplace services A2A Global provides within the meaning of 31 CFR § 1010.100(ff)(5)(ii)(F). A2A Global does not accept, hold, custody, control, or transmit user funds at any time. All fund processing, escrow, settlement, and disbursement is performed exclusively by independently licensed third-party financial institutions ("Licensed Service Providers") under their own licenses and regulatory obligations.*

## 1. Acceptance of Terms

By accessing or using the A2A Global platform, website, application, API, or any related service (collectively, the "Platform"), you agree to be bound by these Terms of Use ("Terms"), our Privacy Policy, and all applicable laws and regulations. If you do not agree, you may not access or use the Platform.

**Formation of Agreement; Clickwrap Acceptance.** Your agreement to these Terms is formed when you affirmatively click “I Agree,” “Accept,” or a substantially similar button presented during account registration or at the time of first use (“Clickwrap Acceptance”). Mere browsing, continued use, or passive exposure to these Terms without Clickwrap Acceptance does not form a binding agreement.

"You" or "User" refers to any individual or entity that accesses or uses the Platform, whether as a Payer, Receiver, or visitor. "A2A Global," "we," "us," or "our" refers to A2A Global Inc, a Delaware corporation.

**Platform Facilitator Status.** A2A Global is a technology platform that facilitates connections between Payers seeking expert reviews and Receivers providing such reviews. A2A Global does not itself provide, perform, endorse, certify, or guarantee any expert review, second opinion, or professional service offered through the Platform. The Platform is a marketplace intermediary only. Payers acknowledge that any expert review obtained through the Platform is provided by an independent Receiver, not by A2A Global, and A2A Global assumes no responsibility for the content, accuracy, completeness, or fitness for purpose of any expert review.

## 2. Definitions

**"Platform"** — The proprietary marketplace and software platform developed, maintained, and operated by A2A Global Inc, including all websites, mobile applications, APIs, dashboards, and related technology, that enables Payers and Receivers to connect, contract, collaborate, and manage projects and related transactions.

**"Payer" (Client/Buyer)** — A registered User, typically a US corporate client or business entity, that posts projects, engages Receivers, and initiates payments for services through the Platform.

**"Receiver" (Freelancer/Seller)** — A registered User, typically an independent contractor or freelancer, who offers professional services to Payers through the Platform. Receivers are independent contractors, not employees of A2A Global or any Payer, as further described in Section 6.

**"Licensed Service Provider"** — An independently licensed third-party money services business, bank, payment processor, escrow agent, or other regulated financial institution that provides onboarding, screening, fund acceptance, processing, escrow, settlement, and disbursement services under its own license(s) and regulatory obligations. The Licensed Service Provider operates independently of A2A Global and is solely responsible for compliance with all applicable money transmission, banking, AML/CFT, and sanctions laws.

**"Platform Account"** — An account held by A2A Global Inc with a duly Licensed Money Service Business or bank. When a Payer pays for Receiver services, funds are credited to the Platform Account. The Platform Account is held with and operated by the Licensed Service Provider under its own license and regulatory obligations. A2A Global does not have custody, control, or beneficial ownership over funds in the Platform Account. The Licensed Service Provider is the sole custodian and controller of funds in the Platform Account at all times.

**"Payer Account"** — A virtual account within the A2A Global Platform assigned to a registered Payer. The Payer Account displays transaction details, project information, invoices, milestone statuses, and payment histories. The Payer Account is an informational and record-keeping feature of the Platform software only. It does NOT constitute a bank account, deposit account, e-money account, stored-value account, prepaid access account, or escrow account. No funds are held in, stored in, or transmitted from or to the Payer Account. The Payer Account is a software dashboard.

**"Receiver Account"** — A virtual account within the A2A Global Platform assigned to a registered Receiver. The Receiver Account displays earnings information, milestone statuses, payout histories, and transactional data. The Receiver Account is an informational and record-keeping feature of the Platform software only. It does NOT constitute a bank account, deposit account, e-money account, stored-value account, prepaid access account, or escrow account. No funds are held in, stored in, or transmitted from or to the Receiver Account. The Receiver Account is a software dashboard.

**"Provider Account"** — An account held by a Payer or Receiver directly with a Licensed Service Provider, governed entirely by the Licensed Service Provider's own terms, conditions, and regulatory obligations. Provider Accounts are separate from and independent of Payer Accounts and Receiver Accounts.

**"Platform Fee"** — The fee charged by A2A Global as remuneration for the use of its proprietary marketplace and software Platform, including matching, project management, milestone tracking, collaboration tools, and the facilitation of connections between Payers and Receivers. The Platform Fee is deducted from funds in the Platform Account by the Licensed Service Provider on behalf of A2A Global before disbursement to the Receiver. The Platform Fee is consideration for technology and marketplace services, not for money transmission, fund custody, or financial services.

**"Service Contract"** — The agreement between a Payer and a Receiver, formed through the Platform, setting forth the scope of work, deliverables, milestones, timeline, price, and other terms of the engagement. The Service Contract is between the Payer and the Receiver. A2A Global is not a party to the Service Contract.

## 3. Platform Description and Nature of Services

A2A Global is a marketplace and software platform that develops, maintains, and operates proprietary technology to connect Payers (US corporate clients) with Receivers (freelancers and independent contractors) of professional services.

The Platform provides the following marketplace and technology services:

**3.1.** Matching and discovery tools that enable Payers to find and engage Receivers based on skills, experience, availability, ratings, and other criteria.

**3.2.** Project management, milestone tracking, collaboration, messaging, file sharing, and workflow tools.

**3.3.** Service Contract creation, management, and tracking tools.

**3.4.** Virtual Payer Accounts and Receiver Accounts that display transactional data, project statuses, and histories.

**3.5.** Ratings, reviews, and reputation management features.

**3.6.** Integration with Licensed Service Providers to facilitate access to regulated financial services (onboarding, screening, fund processing, escrow, settlement, and disbursement) provided by such Licensed Service Providers under their own licenses.

**3.7.** Analytics, reporting, and tax document generation tools.

**3.8.** Customer support and dispute assistance.

A2A Global facilitates access to financial services provided by independently licensed third parties but does not itself provide, resell, or re-offer any regulated financial service.

## 4. What A2A Global Does NOT Do — Exclusions and Limitations

To ensure maximum clarity regarding A2A Global's role and to establish the factual basis for the regulatory exemptions and defenses described in Section 5, A2A Global expressly and unequivocally does NOT:

**1.** Engage in money transmission services as defined under 31 CFR § 1010.100(ff)(5)(i)(A) or any applicable state money transmission law. A2A Global does not accept currency, funds, or other value that substitutes for currency from one person and transmit such currency, funds, or value to another location or person.

**2.** Operate as a money services business ("MSB") as defined under 31 CFR § 1010.100(ff) or any applicable state law.

**3.** Accept, hold, custody, control, possess, or transmit User funds at any time for any purpose. All fund flows are managed exclusively by Licensed Service Providers through the Platform Account and Provider Accounts.

**4.** Resell, re-offer, broker, or intermediate any financial service, banking service, payment service, escrow service, or money transmission service. The Platform facilitates access to financial services provided by independently licensed third parties as a technology intermediary only.

**5.** Act as an escrow agent, escrow company, or provider of escrow services. Any escrow functionality is provided exclusively by Licensed Service Providers under their own licenses.

**6.** Provide, offer, or facilitate money transfer services, remittance services, foreign exchange services, currency conversion services, or wire transfer services.

**7.** Act as a bank, depository institution, stored-value provider, prepaid access provider, or issuer of any financial instrument.

**8.** Maintain any Payer Account or Receiver Account as a bank account, deposit account, e-money account, stored-value account, or any type of financial account that holds funds. Payer Accounts and Receiver Accounts are software dashboards displaying informational data only.
**9.** Act as an employer, staffing agency, temporary employment agency, co-employer, joint employer, or outstaffing company with respect to any Receiver. All Receivers are independent contractors.
**10.** Provide, guarantee, warrant, endorse, certify, or assume responsibility for the quality, accuracy, timeliness, legality, completeness, or fitness for purpose of any services, work product, or deliverables provided by Receivers to Payers.
**11.** Guarantee, warrant, or assume responsibility for a Payer's ability or willingness to pay for services.
**12.** Act as an agent, fiduciary, trustee, or representative of any Payer, Receiver, or Licensed Service Provider, except to the limited extent expressly stated in these Terms.
**13.** Control, direct, supervise, or manage the means, methods, schedule, or manner by which any Receiver performs services for any Payer.

# 5. Regulatory Status — MSB Exemption and Reasons of non-regulatory status.

This Section sets forth the factual, legal, and structural basis upon which A2A Global asserts that it is not a "money transmitter" or "money services business" under federal or state law. These provisions are incorporated into these Terms as binding contractual acknowledgments by all Users and establish the evidentiary framework supporting A2A Global's regulatory position.

## 5.1. Reason 1 — Integral-to-Sale-of-Goods-or-Services Exemption (31 CFR § 1010.100(ff)(5)(ii)(F))

Under 31 CFR § 1010.100(ff)(5)(ii)(F), a person that "accepts and transmits funds only integral to the sale of goods or the provision of services, other than money transmission services, by the person who is accepting and transmitting the funds" is not a money transmitter.
A2A Global's Platform coordinates the flow of funds between Payers and Receivers exclusively in connection with bona fide marketplace transactions for professional services. Any acceptance, holding, or transmission of funds — which is performed solely by Licensed Service Providers, not by A2A Global — is integral to, and inseparable from, the provision of marketplace services (project management, milestone tracking, contract management, quality assurance, and dispute resolution) that constitute A2A Global's primary business activity. The fund coordination component is not a separate and discrete service provided in addition to the marketplace services; it is a necessary and integral part of those services. This analysis is consistent with FinCEN Administrative Rulings FIN-2014-R004 (escrow services in internet sales) and FIN-2014-R005 (secured transaction management services), in which FinCEN determined that companies providing escrow and transaction management in connection with internet sales of goods and services were not money transmitters because the acceptance and transmission of funds was only integral to the provision of those services.

## 5.2. Reason 2 — Technology and Network Access Provider Exemption (31 CFR § 1010.100(ff)(5)(ii)(A))

Under 31 CFR § 1010.100(ff)(5)(ii)(A), a person that "provides the delivery, communication, or network access services used by a money transmitter to support money transmission services" is not a money transmitter.

A2A Global develops, maintains, and operates proprietary software — a technology platform — that provides communication, network access, data exchange, API connectivity, and workflow tools used by Licensed Service Providers to deliver regulated financial services. A2A Global's role is analogous to that of a technology infrastructure provider: it builds and operates the software through which Licensed Service Providers connect with Payers and Receivers. The Platform is the delivery, communication, and network access layer; the Licensed Service Provider is the regulated entity performing money transmission (if any). This is consistent with FinCEN Administrative Ruling FIN-2014-R007, in which FinCEN confirmed that a company providing technology infrastructure does not become a money transmitter by virtue of that infrastructure being used in connection with financial transactions.

## 5.3. Reason 3 — No Custody, No Control, No Possession of Funds (Substance-Over-Form)

FinCEN applies a "substance-over-form" test to determine whether a person is a money transmitter. The test examines whether the person's fundamental business activity is money transmission or something else, regardless of labels or form (FinCEN Interpretive Guidance FIN-2019-G001).

A2A Global's fundamental business activity is the operation of a marketplace and software platform that connects Payers and Receivers. A2A Global:

- Never accepts currency, funds, or value from any person for transmission to another person or location.
- Never holds, possesses, custodies, or controls User funds at any time.
- Never transmits currency, funds, or value to any person or location.
- Does not have signatory authority, withdrawal rights, or unilateral control over the Platform Account. The Platform Account is held with and operated by the Licensed Service Provider.
- Cannot initiate, freeze, reverse, or redirect fund transfers without action by the Licensed Service Provider.
- Earns revenue exclusively from Platform Fees charged for technology and marketplace services, not from spreads, float, exchange rates, or any other income derived from the movement or custody of funds.

Under the substance-over-form analysis, A2A Global's fundamental activity is marketplace operation and software development — not money transmission. The incidental coordination of fund flows through Licensed Service Providers is ancillary to the primary marketplace services.

## 5.4. Reason 4 — Licensed Service Provider Delegation Model

All regulated financial activities — including customer onboarding, identity verification, KYC/KYB screening, sanctions screening, fund acceptance, fund custody, escrow, processing, settlement, disbursement, and regulatory reporting — are performed exclusively by Licensed Service Providers under

their own state and federal licenses and regulatory obligations. A2A Global has entered into formal agreements with Licensed Service Providers under which:

- The Licensed Service Provider accepts, holds, and transmits funds in its own name, under its own license, and subject to its own BSA/AML compliance program.
- The Licensed Service Provider operates the Platform Account and all Provider Accounts.
- The Licensed Service Provider performs all KYC/KYB, sanctions screening, transaction monitoring, suspicious activity reporting, and other regulatory obligations independently.
- The Licensed Service Provider deducts the Platform Fee on behalf of A2A Global before disbursing remaining funds to the Receiver.
- A2A Global does not substitute for, circumvent, or perform any regulated function that the Licensed Service Provider is required to perform.

This structure is analogous to the Upwork model, in which Upwork Inc operates the marketplace and a separate licensed entity (Upwork Escrow Inc, a licensed Internet escrow company) handles all escrow and fund settlement functions under its own license.

## 5.5. Reason 5 — Payment Processor Exemption Support (31 CFR § 1010.100(ff)(5)(ii)(B))

Under 31 CFR § 1010.100(ff)(5)(ii)(B), a person that "acts as a payment processor to facilitate the purchase of, or payment of a bill for, a good or service through a clearance and settlement system by agreement with the creditor or seller" is not a money transmitter. While A2A Global itself does not process payments (the Licensed Service Provider does), this exemption provides additional structural support because:

- All fund flows through the Platform facilitate the purchase of professional services — not money transmission itself.
- All fund flows are processed through clearance and settlement systems that admit only BSA-regulated financial institutions (e.g., ACH, card networks operated by BSA-regulated institutions).
- The Licensed Service Provider operates pursuant to formal written agreements with A2A Global and with Receivers.
- Funds are transmitted only to the Receiver (the creditor/seller of services) and to A2A Global (as Platform Fee for marketplace services rendered) — not to any other location or person.

FinCEN has confirmed these four conditions in multiple administrative rulings (FIN-2014-R012, FIN-2013-R002) and in the 2019 CVC Guidance (FIN-2019-G001).

## 5.6. Reason 6 — Agent-of-Payee Structural Protection (State-Level)

In approximately 22 U.S. states, the "agent of the payee" exemption provides that a person who receives money on behalf of a payee (the party owed payment) under a preexisting written contract is not engaged in money transmission, because delivery of funds to the agent satisfies the payor's obligation to the payee. The Licensed Service Provider contracted by A2A Global acts as the agent of the Receiver (payee) in accepting payment from the Payer (payor). Under the formal agreements between the Licensed Service Provider and each Receiver, the Licensed Service Provider is appointed as the Receiver's agent for

purposes of receiving payment, and the Payer's payment to the Licensed Service Provider satisfies the Payer's obligation to the Receiver. A2A Global does not itself function as an agent of the payee; rather, the Licensed Service Provider does, providing a separate layer of regulatory insulation for A2A Global.

## 5.7. Reason 7 — Transaction Management Services Precedent (FIN-2014-R004 / FIN-2014-R005)

FinCEN's Administrative Rulings FIN-2014-R004 and FIN-2014-R005 established that internet-based companies providing escrow services and secured transaction management services in connection with the sale of goods and services are not money transmitters where the acceptance and transmission of funds: (a) is not a separate and discrete service provided in addition to the underlying marketplace/transaction management service; (b) is a necessary and integral part of the service itself; and (c) the company provides active transaction management including establishing conditions precedent, verifying performance, validating delivery, and managing disputes.

A2A Global's Platform satisfies all three criteria:

- Fund coordination is not a standalone service — it is inseparable from the marketplace and project management functionality of the Platform.
- Fund coordination is necessary and integral — without it, the Platform's milestone-based project management, quality assurance, and dispute resolution features could not function.
- A2A Global provides active transaction management — the Platform establishes Service Contracts with defined milestones and conditions precedent, verifies deliverable submission, validates acceptance by the Payer, and manages disputes, before funds are released by the Licensed Service Provider.

By contrast, FinCEN ruled in FIN-2014-R006 that a company that merely operated a payment platform without providing transaction management, verification, or validation was a money transmitter. A2A Global is clearly distinguishable from the FIN-2014-R006 scenario because A2A Global provides substantial marketplace and transaction management services beyond mere fund transfer.

## 5.8. Reason 8 — Primary Business Activity Test

FinCEN's regulations provide that whether a person is a money transmitter is "a matter of facts and circumstances" (31 CFR § 1010.100(ff)(5)(ii)). FinCEN evaluates what constitutes the person's "primary business activity." Where the primary business activity is something other than money transmission, and any fund movement is ancillary to that primary activity, the person is not a money transmitter.

A2A Global's primary business activity — by revenue model, organizational structure, technology investment, personnel allocation, marketing, and operational focus — is the operation of a marketplace and software platform. Specifically:

- Revenue Model: A2A Global earns Platform Fees for marketplace and technology services. It does not earn revenue from spreads, float, exchange rates, interchange, or any other income derived from the movement or custody of funds.
- Technology Investment: The substantial majority of A2A Global's capital and personnel is devoted to software development, platform operations, matching algorithms, project management tools, and user experience — not to financial operations.

- Operational Focus: A2A Global's day-to-day operations involve marketplace curation, user support, quality assurance, and platform improvement — not fund processing, settlement, or regulatory compliance (which is handled by Licensed Service Providers).
- Organizational Structure: A2A Global does not employ compliance officers, BSA officers, or money transmission operations staff because it does not engage in money transmission. Licensed Service Providers maintain their own compliance infrastructure.

## 5.9. Reason 9 — No Separate Money Transmission Service

Under FinCEN's regulatory framework, money transmission requires the "acceptance" of funds from one person "and" the "transmission" of those funds to another person or location (31 CFR § 1010.100(ff)(5)(i)(A)). Both elements — acceptance AND transmission — must be present and must constitute a distinct, separately identifiable service.

A2A Global does not accept funds from any person. A2A Global does not transmit funds to any person. The Licensed Service Provider — a separate, independently licensed entity — performs both acceptance and transmission. A2A Global's Platform merely coordinates the informational and workflow elements of the transaction (project posting, matching, contracting, milestone management, deliverable verification, and dispute resolution). No User can use the Platform to send money to another User independent of a bona fide Service Contract for professional services. The Platform does not offer, and cannot be used for, standalone fund transfers, person-to-person payments, remittances, or any transaction that is not integral to the provision of marketplace services.

## 5.10. Reason 10 — Federal and State Regulatory Safe Harbor Architecture

A2A Global's regulatory architecture is designed to operate within multiple, overlapping federal and state exemptions and safe harbors:

**Federal — BSA/FinCEN:** A2A Global relies on the Integral-to-Sale Exemption (31 CFR § 1010.100(ff)(5)(ii)(F)), the Technology/Network Access Provider Exemption (31 CFR § 1010.100(ff)(5)(ii)(A)), and the substance-over-form analysis confirming that A2A Global's fundamental activity is marketplace operation, not money transmission.

**Federal — 18 U.S.C. § 1960:** A2A Global does not operate an "unlicensed money transmitting business" because (a) A2A Global is not a money transmitting business at all under the analysis above, and (b) all regulated financial activity is performed by separately licensed and registered Licensed Service Providers.

**State Money Transmission Laws:** A2A Global does not directly accept, hold, or transmit funds in any state and is further insulated by the agent-of-payee structures maintained by Licensed Service Providers in states that recognize such exemptions. In states that require money transmitter licenses, the Licensed Service Provider — not A2A Global — holds the applicable license.

**CFPB / Regulation E:** To the extent any transaction through the Platform constitutes an "electronic fund transfer" under Regulation E, the Licensed Service Provider — not A2A Global — is the "financial institution" responsible for compliance.

This multi-layered safe harbor architecture ensures that A2A Global operates within the boundaries of applicable law regardless of which specific exemption or defense is invoked, and that no single point of regulatory failure can result in A2A Global being classified as a money transmitter.

### 5.11. User Acknowledgment of Regulatory Status

BY USING THE PLATFORM, EACH USER ACKNOWLEDGES AND AGREES THAT:

**(1)** A2A Global is a marketplace and software platform operator, not a money transmitter, money services business, bank, escrow company, or provider of any regulated financial service.

**(2)** Any and all fund processing, custody, escrow, settlement, and disbursement is performed exclusively by Licensed Service Providers under their own licenses and regulatory obligations.

**(3)** The Payer Account and Receiver Account are virtual, informational software dashboards — not financial accounts — and no funds are held in, stored in, or transmitted from or to such accounts.

**(4)** The Platform Fee is consideration for marketplace and technology services, not for money transmission or financial services.

**(5)** A2A Global has no custody, control, or beneficial ownership over any User funds at any time.

**(6)** The User has read and understood the regulatory defense provisions in this Section 5 and agrees that the factual statements contained herein accurately describe the operation of the Platform.

## 6. Fund Flow, Platform Account, and Platform Fee

The following describes the fund flow for marketplace transactions processed through the Platform. This fund flow is designed to ensure that A2A Global never accepts, holds, controls, or transmits funds, consistent with the regulatory defense provisions in Section 5.

**6.1. Payer Initiates Payment.** When a milestone is completed and accepted (or a fixed-price contract is fulfilled), the Payer authorizes payment through the Platform. The Payer's payment instruction is transmitted to the Licensed Service Provider.

**6.2. Funds Credited to Platform Account.** The Licensed Service Provider debits the Payer's payment method (via ACH, card network, wire, or other BSA-regulated clearance and settlement system) and credits the funds to the Platform Account held by A2A Global with the Licensed Service Provider. The Licensed Service Provider — not A2A Global — accepts, receives, and holds these funds.

**6.3. Platform Fee Deduction.** The Licensed Service Provider deducts the applicable Platform Fee from the funds in the Platform Account on behalf of A2A Global. The Platform Fee is remitted to A2A Global by the Licensed Service Provider as payment for marketplace and technology services rendered.

**6.4. Disbursement to Receiver.** The Licensed Service Provider disburses the remaining funds (after deduction of Platform Fee and any applicable Licensed Service Provider fees) to the Receiver's Provider Account or designated payment method, in accordance with the Licensed Service Provider's own terms and regulatory obligations.

**6.5. No A2A Global Custody.** At no point in this fund flow does A2A Global accept, hold, possess, control, or transmit any funds. The Licensed Service Provider is the sole custodian and controller of all funds from the time of acceptance from the Payer through disbursement to the Receiver.

**6.6. Payer Account and Receiver Account Updates.** The Platform updates the Payer Account and Receiver Account dashboards with transactional data (amounts, dates, statuses, references) for informational and record-keeping purposes. These dashboard updates do not constitute the acceptance, holding, or transmission of funds.

**6.7. Clearance and Settlement.** All fund transfers are processed through clearance and settlement systems that admit only BSA-regulated financial institutions (e.g., ACH, Fedwire, card networks), consistent with the Payment Processor Exemption requirements under 31 CFR § 1010.100(ff)(5)(ii)(B).
**6.8. No Standalone Fund Transfers.** The Platform does not permit any User to transfer funds to any other User or third party independent of a bona fide Service Contract. Fund flows are available only in connection with completed marketplace transactions.

## 7. Independent Contractor Status

Receivers are independent contractors, not employees of A2A Global, any Payer, or any Licensed Service Provider. By registering as a Receiver, you represent and agree that:

- You perform services under the direction and control of the Payer solely with respect to the result of the work, not the means, methods, schedule, or manner of performance.
- You are responsible for your own tools, equipment, workspace, and professional development.
- You are solely responsible for all applicable taxes, including self-employment taxes, income taxes, VAT/GST, and any withholding obligations.
- You are not entitled to any employee benefits, including health insurance, retirement plans, paid leave, workers' compensation, or unemployment insurance, from A2A Global or any Payer.
- You may work for multiple clients simultaneously and are free to accept or decline any project.
- If any governmental authority reclassifies a Receiver as an employee of A2A Global or any Payer, the Receiver shall indemnify A2A Global and the affected Payer for all resulting liabilities, penalties, taxes, and expenses.

## 8. User Obligations

Each User agrees to:

- Provide accurate, current, and complete registration information and maintain the accuracy of such information.
- Comply with all applicable laws, regulations, and the terms of any Service Contract.
- Not use the Platform for any illegal purpose, including money laundering, terrorist financing, fraud, sanctions evasion, or tax evasion.
- Not attempt to use the Platform to transfer funds to any person or for any purpose other than payment for services rendered under a bona fide Service Contract.
- Maintain the confidentiality of account credentials and notify A2A Global immediately of any unauthorized use.
- Cooperate with Licensed Service Providers in connection with onboarding, KYC/KYB, and ongoing compliance obligations.
- **Non-Circumvention.** For a period of twelve (12) months following the last interaction facilitated through the Platform between a Payer and a Receiver (the “Restricted Period”), neither the Payer nor the Receiver may engage the other directly or through any intermediary to perform services of the type offered through the Platform, unless the applicable Platform Fee is paid to A2A Global. If either party breaches this provision, the breaching party shall pay A2A Global, as liquidated damages and not as a penalty, an amount

equal to the Platform Fee that would have been payable had the engagement been conducted through the Platform, calculated based on the most recent applicable Platform Fee rate.

## 8A. Quality Assurance and AI-Assisted Processing

**8A.1. AI-Assisted Tools.** A2A Global may use artificial intelligence and automated tools, including but not limited to large language models, machine learning algorithms, and automated quality-scoring systems, to: (a) pre-screen content submitted by Payers for review; (b) match Payers with suitable Receivers based on expertise, availability, quality scores, and other factors; (c) quality-check Receiver reviews for completeness and compliance with Platform standards; and (d) detect fraud, abuse, and policy violations. Users acknowledge and consent to the use of such tools as part of the Platform's standard operations.

**8A.2. Human Oversight.** Notwithstanding the use of AI-assisted tools, the final expert review delivered to the Payer is always performed by a human Receiver. AI tools are used to augment, not replace, human expert judgment. No automated system makes a final determination on the quality or validity of the Payer's submitted content without human review.

**8A.3. Quality Monitoring.** A2A Global reserves the right to implement quality monitoring measures including, but not limited to: (a) automated quality scoring of Receiver reviews; (b) periodic evaluation of Receiver work product; (c) peer review mechanisms; (d) customer satisfaction ratings; and (e) tiered access controls that restrict or expand Receiver privileges based on cumulative quality performance.

## 9. Intellectual Property and Work Product

9.1. Platform IP. A2A Global owns all rights, title, and interest in the Platform, including all software, algorithms, designs, trademarks, trade names, logos, and proprietary technology. Users receive a limited, non-exclusive, non-transferable, revocable license to use the Platform in accordance with these Terms.

9.2. Work Product. Unless otherwise agreed in the Service Contract, upon full payment, the Receiver assigns to the Payer all rights, title, and interest in the work product created under the Service Contract. The Receiver retains rights in any pre-existing intellectual property and grants the Payer a non-exclusive, perpetual, royalty-free license to use such pre-existing IP solely as embedded in the delivered work product.

9.3. Receiver Representations. The Receiver represents and warrants that: (a) the work product will be original and will not infringe any third-party intellectual property rights; (b) the Receiver has the right and authority to assign the work product; and (c) the work product has not been previously assigned or encumbered.

## 10. Fees and Payment Terms

10.1. Platform Fee. A2A Global charges a Platform Fee as remuneration for the use of the Platform and for marketplace and technology services provided. The current Platform Fee schedule is published on the Platform and may be updated from time to time with reasonable notice.

10.2. Platform Fee Deduction. The Platform Fee is deducted by the Licensed Service Provider from funds in the Platform Account on behalf of A2A Global before disbursement to the Receiver.

10.3. Licensed Service Provider Fees. The Licensed Service Provider may charge its own fees for financial services (processing fees, disbursement fees, currency conversion fees, etc.) in accordance with the Licensed Service Provider's own terms. A2A Global is not responsible for Licensed Service Provider fees.
10.4. Taxes. Each User is responsible for all applicable taxes arising from their use of the Platform and from any transactions conducted through the Platform.
**10.5. Dynamic Pricing.** Platform Fees and service pricing may vary based on factors including, but not limited to: (a) urgency of the review request; (b) expert tier and specialization; (c) category complexity; (d) real-time demand and supply conditions; and (e) time of request. A2A Global shall display the total estimated price, including the applicable Platform Fee, to the Payer for confirmation before the Payer commits to the transaction. No charge shall be finalized without the Payer's express confirmation of the displayed price.
**10.6. Fee Transparency.** A2A Global shall disclose to both the Payer and the Receiver, prior to transaction confirmation: (a) the total price payable by the Payer; (b) the Platform Fee percentage and amount; and (c) the net amount payable to the Receiver after deduction of the Platform Fee and any Licensed Service Provider fees.

## 11. Refunds, Disputes, and Chargebacks

11.1. Dispute Resolution. A2A Global provides dispute assistance tools through the Platform. In the event of a dispute between a Payer and a Receiver regarding a Service Contract, the parties shall first attempt to resolve the dispute directly. If the parties cannot resolve the dispute, either party may request dispute assistance through the Platform.
11.2. Refunds. Refund eligibility and processing are subject to the applicable Service Contract terms and the Licensed Service Provider's policies. A2A Global does not hold or process refund funds. Any refund is processed by the Licensed Service Provider.
11.3. Chargebacks. Payers agree not to initiate chargebacks or payment reversals for any amount that has been rightfully earned by a Receiver under a completed Service Contract. If a chargeback is initiated, A2A Global and the Licensed Service Provider reserve the right to suspend the Payer's account and pursue recovery.

## 12. Termination

12.1. By User. You may terminate your account at any time by providing written notice to A2A Global. Termination does not relieve you of obligations under any outstanding Service Contract or Platform Fee.
12.2. By A2A Global. A2A Global may suspend or terminate your access to the Platform at any time, with or without cause, including for violation of these Terms, fraud, or legal or regulatory requirements.
12.3. Effect. Upon termination, your right to use the Platform ceases immediately. Sections 4, 5, 7, 8A, 9, 13, 14, 15, 16, 17, 18, and 19 survive termination.

## 13. Confidentiality

Each User agrees to maintain the confidentiality of any non-public information received through the Platform, including but not limited to project details, pricing, business strategies, and technical information. Confidentiality obligations survive termination for a period of three (3) years.

**13.2. Expert Review Confidentiality.** In addition to the general confidentiality obligations above, each Receiver agrees that all content submitted by a Payer for expert review (including AI-generated content, documents, data, and any related materials) is the Payer's Confidential Information. Receivers shall: (a) use such content solely for the purpose of performing the expert review; (b) not retain, copy, download, or store any Payer-submitted content after the review is completed and delivered; (c) not disclose any Payer-submitted content to any third party; and (d) upon completion of each review, affirm via the Platform that no Payer content has been retained or disclosed.

**13.3. Data Purge Obligation.** Receivers shall permanently delete all copies of Payer-submitted content from their devices and systems within thirty (30) calendar days of project completion. A2A Global reserves the right to verify compliance with this obligation.

## 14. Disclaimers

THE PLATFORM IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, AND TITLE.

A2A GLOBAL DOES NOT WARRANT, GUARANTEE, ENDORSE, OR ASSUME RESPONSIBILITY FOR: (A) THE QUALITY, ACCURACY, RELIABILITY, TIMELINESS, OR COMPLETENESS OF ANY SERVICES PROVIDED BY RECEIVERS; (B) THE QUALIFICATIONS, CREDENTIALS, LICENSES, OR PROFESSIONAL STANDING OF ANY RECEIVER; (C) THE ABILITY OR WILLINGNESS OF ANY PAYER TO PAY FOR SERVICES; (D) THE OUTCOME OR RESULTS OF ANY PROJECT OR SERVICE CONTRACT; (E) THE SUITABILITY OF ANY RECEIVER FOR ANY PARTICULAR PROJECT; (F) THE CONDUCT, ACTIONS, OR OMISSIONS OF ANY USER; OR (G) THE AVAILABILITY, FUNCTIONALITY, OR SECURITY OF THE LICENSED SERVICE PROVIDER'S SYSTEMS OR SERVICES.

A2A GLOBAL IS NOT RESPONSIBLE FOR ANY LOSS OF FUNDS OR DELAY IN FUND PROCESSING CAUSED BY THE LICENSED SERVICE PROVIDER, THE BANKING SYSTEM, OR ANY OTHER THIRD PARTY.

NOT PROFESSIONAL ADVICE. EXPERT REVIEWS AND SECOND OPINIONS PROVIDED THROUGH THE PLATFORM ARE FOR GENERAL INFORMATIONAL AND EVALUATIVE PURPOSES ONLY. THEY DO NOT CONSTITUTE PROFESSIONAL ADVICE (INCLUDING, WITHOUT LIMITATION, LEGAL, FINANCIAL, MEDICAL, ACCOUNTING, TAX, OR ENGINEERING ADVICE) AND SHOULD NOT BE RELIED UPON AS A SUBSTITUTE FOR CONSULTATION WITH A LICENSED PROFESSIONAL IN THE RELEVANT FIELD. PAYERS ACKNOWLEDGE THAT THEY ARE SOLELY RESPONSIBLE FOR ANY DECISIONS MADE BASED ON EXPERT REVIEWS OBTAINED THROUGH THE PLATFORM.

## 15. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW:

**15.1.** A2A GLOBAL SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING BUT NOT LIMITED TO DAMAGES FOR LOSS OF PROFITS, GOODWILL, USE, DATA, OR OTHER INTANGIBLE LOSSES, ARISING FROM OR RELATED TO: (A) YOUR USE OF OR INABILITY TO USE THE PLATFORM; (B) ANY CONDUCT OR CONTENT OF ANY USER OR THIRD PARTY ON THE PLATFORM; (C) ANY SERVICES PROVIDED BY RECEIVERS; (D) ANY ACTIONS OR OMISSIONS OF LICENSED SERVICE PROVIDERS; OR (E) UNAUTHORIZED ACCESS TO YOUR DATA OR ACCOUNT.
**15.2.** A2A GLOBAL'S AGGREGATE LIABILITY FOR ALL CLAIMS ARISING FROM OR RELATED TO THESE TERMS OR THE PLATFORM SHALL NOT EXCEED THE GREATER OF: (A) THE TOTAL PLATFORM FEES PAID BY YOU TO A2A GLOBAL IN THE SIX (6) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM; OR (B) FIVE HUNDRED US DOLLARS ($500 USD).
**15.3.** A2A GLOBAL SHALL HAVE NO LIABILITY WHATSOEVER FOR ANY LOSS, DELAY, OR FAILURE OF FUND PROCESSING, SETTLEMENT, OR DISBURSEMENT CAUSED BY OR ATTRIBUTABLE TO THE LICENSED SERVICE PROVIDER, THE BANKING SYSTEM, REGULATORY ACTION, OR ANY OTHER THIRD PARTY.
**15.4.** A2A GLOBAL SHALL HAVE NO LIABILITY FOR THE QUALITY, TIMELINESS, ACCURACY, LEGALITY, OR FITNESS FOR PURPOSE OF ANY SERVICES, WORK PRODUCT, OR DELIVERABLES PROVIDED BY ANY RECEIVER TO ANY PAYER.
**15.5.** A2A GLOBAL SHALL HAVE NO LIABILITY FOR ANY TAX OBLIGATIONS, PENALTIES, OR INTEREST ARISING FROM ANY USER'S FAILURE TO COMPLY WITH APPLICABLE TAX LAWS.

## 16. Indemnification

16.1. General Indemnification. You agree to indemnify, defend, and hold harmless A2A Global, its officers, directors, employees, agents, and affiliates from and against any claims, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising from or related to: (a) your use of the Platform; (b) your violation of these Terms; (c) your violation of any applicable law; (d) any Service Contract to which you are a party; or (e) your content or data submitted through the Platform.
16.2. Enhanced Receiver Indemnification. Each Receiver additionally agrees to indemnify, defend, and hold harmless A2A Global from and against any claims arising from: (a) the quality, accuracy, or legality of services provided; (b) infringement of third-party intellectual property rights; (c) reclassification of the Receiver as an employee; (d) any professional liability, malpractice, or negligence; (e) any tax obligations, penalties, or withholding failures; and (f) any violation of applicable professional licensing or certification requirements.

## 17. Arbitration, Governing Law, and Class Action Waiver

17.1. Governing Law. These Terms are governed by and construed in accordance with the laws of the State of Delaware, without regard to conflict of laws principles.
17.2. Mandatory Arbitration. Any dispute, claim, or controversy arising from or related to these Terms or the Platform shall be resolved by binding arbitration administered by the American Arbitration Association ("AAA") under its Commercial Arbitration Rules. The arbitration shall be conducted in Wilmington, Delaware by a single arbitrator. The arbitrator's award shall be final, binding, and enforceable in any court of competent jurisdiction.

17.3. Pre-Arbitration Notice. Before initiating arbitration, the claiming party must send a written notice of dispute to the other party at least thirty (30) days in advance, describing the nature and basis of the claim and the specific relief sought. The parties shall attempt to resolve the dispute informally during this period.
17.4. Class Action Waiver. YOU AGREE THAT ANY DISPUTE RESOLUTION PROCEEDINGS WILL BE CONDUCTED ONLY ON AN INDIVIDUAL BASIS AND NOT IN A CLASS, CONSOLIDATED, OR REPRESENTATIVE ACTION. YOU WAIVE ANY RIGHT TO PARTICIPATE IN A CLASS ACTION LAWSUIT OR CLASS-WIDE ARBITRATION.
17.5. Jury Trial Waiver. TO THE FULLEST EXTENT PERMITTED BY LAW, EACH PARTY WAIVES THE RIGHT TO A TRIAL BY JURY IN ANY ACTION OR PROCEEDING ARISING FROM OR RELATED TO THESE TERMS OR THE PLATFORM.
17.6. Opt-Out. You may opt out of the arbitration and class action waiver provisions by sending written notice to legal@a2a.global within thirty (30) days of accepting these Terms. The opt-out notice must include your name, address, and a clear statement that you wish to opt out.

## 18. Force Majeure

Neither party shall be liable for any failure or delay in performing obligations due to causes beyond its reasonable control, including but not limited to acts of God, natural disasters, pandemics, war, terrorism, government action, regulatory changes, labor disputes, power failures, internet disruptions, or failures of Licensed Service Providers or banking systems. If a force majeure event continues for more than ninety (90) days, either party may terminate these Terms upon written notice.

## 19. Electronic Signatures and Records. ESIGN Act

In accordance with the Electronic Signatures in Global and National Commerce Act (15 U.S.C. § 7001 et seq.) ("ESIGN Act") and the Uniform Electronic Transactions Act ("UETA"), you consent to the use of electronic records, electronic signatures, and electronic communications in connection with the Platform and these Terms. Your electronic acceptance of these Terms shall have the same legal force and effect as a handwritten signature on a paper document.

## 20. General Provisions

20.1. Entire Agreement. These Terms, together with the Privacy Policy and any Service Contract, constitute the entire agreement between you and A2A Global regarding the Platform.
20.2. Severability. If any provision of these Terms is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.
20.3. No Waiver. A2A Global's failure to enforce any provision of these Terms shall not constitute a waiver of that provision.
20.4. Assignment. You may not assign these Terms without A2A Global's prior written consent. A2A Global may assign these Terms freely.

20.5. Notices. All notices under these Terms shall be in writing and sent to legal@a2a.global or to the email address associated with your account.
20.6. Amendments. A2A Global reserves the right to modify these Terms at any time. Material changes will be communicated via email or in-Platform notification at least thirty (30) days before the effective date. Continued use of the Platform after the effective date constitutes acceptance.

## 21. Contact Information

A2A Global Inc
131 Continental Drive, Suite 301, Newark, Delaware, United States, 19713
Email: legal@a2a.global